

RESOLUTION TO AUTHORIZE FILING OF BOARD OF REVISION COMPLAINT

WHEREAS, the Board of Education of the Brecksville-Broadview Heights City School District (the “Board”) is authorized to file complaints with the county Board of Revision (the “BOR”) pursuant to R.C. 5715.19; and

WHEREAS, the Board has identified certain real property in the School District identified as County Auditor Permanent Parcel No. 583-04-031 located at 1123 West Royalton Rd, Broadview Heights, OH 44147 (the “Property”) whose record owner is Sgt. Clean Broadview Heights Holdings, LLC. (the “Property Owner”) that has recently sold in an arm’s-length transaction as defined in R.C. 5713.03; and

WHEREAS, the basis for the Board filing a 2024 tax year original complaint on the Property is R.C. 5715.19(A)(1)(d), which authorizes the filing of a complaint regarding the determination of the total valuation or assessment of any parcel that appears on the tax list, except parcels assessed by the tax commissioner pursuant to R.C. 5727.06; and

WHEREAS, the Property is valued at \$1,951,300.00 and recently sold for \$3,500,000.00; and

WHEREAS, the Board has provided the Property Owner with the notice required pursuant to R.C. 5715.19(A)(7).

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District that:

SECTION I

The Whereas clauses are hereby incorporated in this Section I and the Board hereby authorizes the filing of a complaint with the BOR on the Property for the 2024 tax year regarding the total valuation or assessment of the Property with the recent arm’s-length sale price of \$3,500,000.00 being the total fair market value sought by the Board for the Property.

SECTION II

The Board authorizes the Treasurer and legal counsel to take all actions necessary to effectuate the filing of the aforementioned complaint and to pursue the same.

SECTION III

It is found and determined that all formal actions of this Board concerning or related to the adoption of this Resolution were adopted in an open meeting of this Board, and all deliberations of this Board and any of its committees, if any, that resulted in such formal actions were adopted in meetings open to the public, in compliance with all applicable legal requirements of the Ohio Revised Code.

_____ moved and _____ seconded the motion that the above Resolution be adopted.

Upon roll call and the adoption of the Resolution, the vote was as follows:

Yeas: _____

Nays: _____

ADOPTED this _____ day of _____, 2025.

Treasurer

CERTIFICATION

The undersigned hereby certifies that the foregoing is a true and correct copy of a Resolution adopted at a meeting held on the _____ day of _____, 2025 together with a true and correct extract from the minutes of said meeting to the extent pertinent to the consideration and adoption of said Resolution.

Treasurer